

HOUSE No. 3618

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating the flight of unmanned aircraft/drones in the airspace over all early, elementary and secondary education facilities in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>8/14/2025</i>

HOUSE No. 3618

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 3618) of Bruce J. Ayers relative to the flight of unmanned aircraft drones in the airspace over early, elementary and secondary educational facilities. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3256 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating the flight of unmanned aircraft/drones in the airspace over all early, elementary and secondary education facilities in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws is hereby amended by adding the following section:-

2 Section 64. (a) As used in this section the following terms shall, unless the context clearly
3 requires otherwise, have the following meanings:-

4 “School zone”, on or within 50 feet of the real property comprising a public or private
5 accredited preschool, accredited Head Start facility, elementary, vocational or secondary school.

6 “Small unmanned aircraft”, an unmanned aircraft weighing less than 55 pounds on
7 takeoff, including everything that is on board or otherwise attached to the aircraft.

8 “Small unmanned aircraft system”, a small unmanned aircraft and its associated
9 elements, including communication links and the components that control the small unmanned
10 aircraft, that are required for the safe and efficient operation of the small unmanned aircraft.

11 “Unmanned aircraft”, an aircraft operated without the possibility of direct human
12 intervention from within or on the aircraft.

13 (b) No person shall operate a small unmanned aircraft system within a vertical distance of
14 400 feet in a school zone without authorization by the superintendent of schools.

15 (c) Whoever willfully operates a small unmanned aircraft system in violation of
16 subsection (b) shall be punished by a fine of not more than \$250 for the first offense, a fine of
17 not more than \$500 for a second offense, and a fine of not more than \$750 and the small
18 unmanned aircraft system shall be confiscated by the commonwealth and destroyed for a third or
19 subsequent offense.